

ALITO, J., dissenting

ministerial exception? Provisions of Title VII provide exemptions for certain religious organizations and schools “with respect to the employment of individuals of a particular religion to perform work connected with the carrying on” of the “activities” of the organization or school, 42 U.S.C. § 2000e-1(a); see also § 2000e-2(e)(2), but the scope of these provisions is disputed, and as interpreted by some lower courts, they provide only narrow protection.⁵⁵

Healthcare. Healthcare benefits may emerge as an intense battleground under the Court’s holding. Transgender employees have brought suit under Title VII to challenge employer-provided health insurance plans that do not cover costly sex reassignment surgery.⁵⁶ Similar claims have been brought under the Affordable Care Act (ACA), which broadly prohibits sex discrimination in the provision of healthcare.⁵⁷

⁵⁵ See, e.g., *EEOC v. Kamehameha Schools/Bishop Estate*, 990 F.2d 458, 460 (CA9 1993); *EEOC v. Fremont Christian School*, 781 F.2d 1362, 1365–1367 (CA9 1986); *Rayburn v. General Conference of Seventh-day Adventists*, 772 F.2d 1164, 1166 (CA4 1985); *EEOC v. Mississippi College*, 626 F.2d 477, 484–486 (CA5 1980); see also Brief for United States Conference of Catholic Bishops et al. as *Amici Curiae* in No. 18–107, at 30, n. 28 (discussing disputed scope). In addition, 42 U.S.C. § 2000e-2(e)(1) provides that religion may be a BFOQ, and allows religious schools to hire religious employees, but as noted, the BFOQ exception has been read narrowly. See *supra* this page.

⁵⁶ See, e.g., Amended Complaint in *Toomey v. Arizona*, No. 4:19-cv-00035 (D Ariz., Mar. 2, 2020). At least one District Court has already held that a state health insurance policy that does not provide coverage for sex reassignment surgery violates Title VII. *Fletcher v. Alaska*, 443 F. Supp. 3d 1024, 1030 (D Alaska 2020).

⁵⁷ See, e.g., Complaint in *Conforti v. St. Joseph’s Healthcare System*, No. 2:17-cv-00050 (D NJ, Jan. 5, 2017) (transgender man claims discrimination under the ACA because a Catholic hospital refused to allow a surgeon to perform a hysterectomy). And multiple District Courts have already concluded that the ACA requires health insurance coverage for sex reassignment surgery and treatment. *Kadel v. Folwell*, 446 F. Supp. 3d 1, 19 (MDNC 2020) (allowing claim of discrimination under ACA, Title IX, and Equal Protection Clause); *Tovar v. Essentia Health*, 342 F. Supp. 3d 947,